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Case Number: 26NNCV03970 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 15

Date: September 11, 2026

Case No: 26NNCV03970 Trial Date: January 19, 2027

Case Name: Fayad v. Sage Glendale II LLC, et al.

DEMURRER WITH MOTION TO STRIKE; MOTION FOR PROTECTIVE ORDER; MOTION TO COMPEL DEPOSITION

Moving Party: Defendants, Sage Glendale II LLC, Agemark Management LLC, and Angela Smith [Demurrer]

Defendant, Agemark Management LLC [Motion for Protective Order]

Plaintiff, Emadia Fayad [Motion to Compel Deposition]

Responding Party: Plaintiff, Emadia Fayad [Demurrer and Motion for Protective Order]

Defendants, Sage Glendale II LLC, Agemark Management LLC, and Angela Smith [Motion to Compel Deposition]

RELIEF REQUESTED:

Sustain demurrer to the first cause of action for elder abuse alleged in the Complaint and the prayer for punitive and exemplary damage.

Grant a protective order regarding the noticed depositions of corporate witnesses Martin Hug, Forrest Westin, and Michael Pittore.

Compel the deposition of Martin Hug.

CAUSES OF ACTION: from Complaint

1) Elder Abuse [Pursuant to the Elder Adult and Dependent Adult Civil Protection Act – Welfare and Institutions Code §§15600, et seq.]

2) Negligence

SUMMARY OF FACTS:

The Complaint alleges that on May 30, 2024, Emadia Fayad ("Plaintiff") was admitted to Defendants' residential care facility for the elderly suffering from dementia. Plaintiff alleges that during the time she was a resident at the facility, she suffered multiple severe witnessed and unwitnessed and avoidable falls. As a result of the multiple falls, Plaintiff suffered from significant injuries, including a fractured hip which required surgical repair. The Complaint alleges that upon Plaintiff's admission to the facility, Defendants were aware that Plaintiff suffered from dementia, was at risk of falls, and required special care and assistance including 24-hour supervision and monitoring, assistance with ambulation and transferring, and the provision of safety and assistance devices to prevent accidents. The Complaint alleges that notwithstanding this knowledge, Defendants knowingly disregarded this risk and failed to adequately care for, supervise or monitor Plaintiff.

DEMURRER:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

First Cause of Action, Elder Abuse

To state a cause of action for elder abuse and neglect, Plaintiff must allege "[p]hysical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering." (Welf. & Inst. Code, § 15610.07, subd. (a)(1).) Acts which are prohibited under the Elder Abuse Act provisions of the Welfare and Institute Code "do not include acts of simple professional negligence, but refer to forms of abuse or neglect performed with some state of culpability greater than mere negligence." (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 781.)

To constitute abuse and neglect within the meaning of the Elder Abuse Act, thereby triggering the enhanced remedies available under the Act, Plaintiff "must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct," with recklessness referring "to a subjective state of culpability greater than simple negligence, which has been described as a "deliberate disregard" of the "high degree of probability" that an injury will occur," and "[o]ppression, fraud and malice [involving] intentional or conscious wrongdoing of a despicable or injurious nature." (Sababin v. Superior Court (2006) 144 Cal.App.4th 81, 88-89, quotation marks omitted.)

Defendants demur to the first cause of action for elder abuse on the ground that the Complaint fails to state sufficient facts as to how Defendants committed any act that would constitute elder abuse. (Demurrer, p. 5:14-19.) Defendants further argue that the Complaint fails to allege any specific conduct that would support an elder abuse cause of action against defendant Angela Smith ("Smith").

The Complaint alleges that Defendants knew that Plaintiff "suffered from Dementia, was at risk of falls, and therefore required special care and assistance including 24-hour supervision and monitoring, assistance and monitoring with ambulation and transferring, the provision of safety and assistance devices to prevent accidents, assistance and monitoring with [Plaintiff's] other activities of daily living, and the implementation of interventions to prevent further falls." (Compl., ¶ 20.) The Complaint alleges that Defendants "failed to adequately assess, generate and implement an adequate plan of care for [Plaintiff] and to implement adequate preventive measures for falling." (Compl., ¶ 20.) The Complaint alleges that Defendants knew that if they failed to provide Plaintiff "with the aforementioned care, supervision, and monitoring, there was a high probability that [Plaintiff] would suffer injury." (Compl., ¶ 21.) The Complaint alleges that Defendants were aware, upon Plaintiff's admission to the facility, that she "required a higher level of care and care interventions to prevent injury" than the facility could provide. (Compl., ¶ 25.) The Complaint further alleges that Plaintiff suffered multiple witnessed and unwitnessed falls throughout her residency. (Compl., ¶ 26.) On April 26, 2026, the Complaint alleges that Plaintiff suffered fall resulting in her being transferred to Glendale Memorial Hospital where she was revealed to have suffered from a fractured hip. (Compl., ¶ 27.)

As to Smith, the Complaint alleges that Smith, as the administrator of the facility, did not properly carry out her duties to administer and manage the facility or to "ensure the provision of services to the residents with appropriate regard for the residents' physical and mental well-being and needs." (Compl., ¶¶ 44-47.) The Complaint alleges that Smith, and other named corporate officers and directors, ratified the conduct and were aware of the understaffing and the "sub-standard provision of care." (Compl., ¶ 5.) The Complaint further alleges that Smith and the other officers and directors "were focused on unlawfully increasing the earnings in the operation of DEFENDANTS' businesses as opposed to providing the legally mandated minimum care to be provided to elderly and/or infirm residents." (Compl., ¶ 9.)

Here, Plaintiff sufficiently has stated an elder abuse cause of action. Plaintiff has identified ways in which the facility defendants allegedly neglected Plaintiff's care. (Compl., ¶¶ 20-27.) Plaintiff alleges that the facility knew Plaintiff required special care, and that, without said care, Plaintiff faced a high probability of injury. (Compl., ¶¶ 20-25.) Despite this knowledge, Plaintiff alleges that facility staff failed to adequately supervise and care for Plaintiff. (Compl., ¶¶ 20-27.) Plaintiff has also alleged that Smith, and other directors, managing agents and officers, ratified the misconduct, and knowingly underfunded and understaffed the facility in order to increase earnings. (Compl., ¶ 9.) Whether or not Defendants' conduct amounts to recklessness is a factual inquiry. However, Plaintiff has stated facts that meet the pleading standard for elder abuse. Thus, Plaintiff has sufficiently stated a cause of action for elder abuse.

The demurrer is OVERRULED.

MOTION TO STRIKE

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP, § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civil Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (Turman v. Turning Point of Cent. Cal., Inc. (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Id.) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Id.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Defendants move to strike the requests for punitive damages on the ground that Plaintiff has failed to sufficiently allege a cause of action for elder abuse. As discussed above, the Court has found that the cause of action is adequately pled. Thus, the motion to strike is DENIED.

MOTION FOR PROTECTIVE ORDER

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (CCP, § 2031.060 subd. (b).) The protective order may include that "all or some of the items or categories of items in the demand need not be produced or made available at all." (CCP, § 2031.060 subd. (b)(1).)

With respect to protective orders generally, the burden of showing good cause is ordinarily on the party seeking the protective order. (Beverly Hills Nat. Bank & Trust Co. v. Superior Court (1961, 2nd Dist.) 195 Cal.App.2d 861, 866-867.) The granting of a protective order is within the discretion of the trial court. (Id.) The granting or denial of a protective order is reviewed for abuse of discretion. (See Meritplan Insurance Co. v. Superior Court (1981) 124 Cal.App.3d 237, 242.) When the record shows facts on which the trial court exercised its discretion, this exercise will not be disturbed on appeal. (Foster v. Gillette Co. (1979) 100 Cal.App.3d 569, 578.)

Defendant seeks an order staying the depositions of Martin Hug, Forrest Westin, and Michael Pittore pending completion of the deposition of Defendants' persons most qualified; requiring Plaintiff to identify with particularity any topics uniquely within each witness's personal knowledge before any further individual depositions proceed; limiting any such depositions to nonduplicative matters within the witness's personal knowledge; and narrowing the accompanying document requests to documents uniquely possessed by the individual witness and not otherwise available through entity discovery.

Defendants argue that Plaintiff seeks the same categories of information from Hug, Westin and Pittore that she has already sought through the depositions of Defendants' two PMK witnesses. (Mot., p. 3:15-19.) Defendants argue that Hug, Pittore, and Westin do not have personal knowledge about Plaintiff, her residency at Sage Glendale II, or the facts concerning her case. (Seigler Decl., ¶ 14.)

In the opposition, Plaintiff assert that during the deposition of Sage Glendale's deposition corporate representative, she testified that she communicates with Westin and Pittore about facility census, staffing, interactions with the Department of Social Services, and facility compliance with applicable rules, laws and regulations governing the operations of a residential care facility for the elderly in California. (Opp., pp. 3:13-4:22, Ex. 10.) Westin and Pittore are the current managing agents of the facility. (Opp., pp. 6:4-8:4.)

The Court finds that Defendants have not shown good cause warranting a protective order. Plaintiff does not seek to depose Hug, Pittore, or Westin regarding any personal knowledge of Plaintiff or her care at the facility. Plaintiff seeks to depose Hug, Pittore, and Westin regarding facility staffing, budgets, census, regulatory compliance, financial performance, Department of Social Services interactions, and facility operations generally. (Seigler Decl., Exs. A, C, D.) Hug, Pittore, and Westin are appropriate parties to depose concerning these categories of information.

Moreover, Defendants' objections based on the Apex Doctrine are unavailing. The Court finds that *Liberty Mutual Ins. Co. v. Superior Court of San Mateo County* (1992) 10 Cal.App.4th 1282 does not apply to preclude Hug, Pittore, or Westin's depositions. In *Liberty Mutual*, the plaintiff sought to depose Liberty Mutual's president and chief executive officer as part of her initial discovery demands, even though he had no connection to or information about the case. The *Liberty Mutual* court noted that allowing a party to depose a corporate officer at the "apex" of the corporate hierarchy before less intrusive discovery has been conducted raises a "tremendous potential for discovery abuse and harassment." (*Liberty Mutual*, supra, 10 Cal.App.4th at p. 1287.) Thus, "it amounts to an abuse of discretion to withhold a protective order when a plaintiff seeks to depose a corporate president, or corporate officer at the apex of a corporate hierarchy, absent a reasonable indication of the officer's personal knowledge of the case and absent exhaustion of less intrusive discovery methods." (Id.)

Here, Plaintiff has presented evidence that Pittore and Westin, and thus presumably Hug when he previously held the same position, regularly communicate with Sage Glendale regarding the very topics on which Plaintiff seeks to depose them. (Opp., pp. 3:13-4:22, Ex. 10; Seigler Decl., Exs. A, C, D.) Thus, the Court does not find that the depositions of Hug, Pittore, or Westin are precluded by the apex doctrine such as was the case in *Liberty Mutual*. Here, Hug, Pittore, and Westin have knowledge of the topics Plaintiff has identified in the deposition notices.

Thus, the motion for protective order is DENIED.

MOTION TO COMPEL DEPOSITION

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (CCP, § 2025.450 subd. (a).)

Plaintiff moves to compel the deposition of Martin Hug, the Manager/Member of Agemark Management, LLC, which is the managing company for Sage Glendale Senior Living, the facility where Plaintiff was a resident. (Mot., p. 4:15-16.) Defendants oppose the motion on the same grounds as their motion for protective order, discussed above. Namely that Plaintiff has already deposed Defendants' PMK's on these same topics, and that the deposition violates the apex employee doctrine. Although Hug is undisputably a management level employee, Plaintiff seeks to depose him regarding his personal knowledge of corporate operations, not knowledge of Plaintiff or the care she received. (*Liberty Mutual Ins. Co.*, supra, 10 Cal.App.4th at 1287-1288.) Plaintiff has presented evidence that Hug "typically would be included on any communications around regulatory or compliance." (Reply, Ex. 1.)

Thus, the Court finds that an order compelling the deposition of Martin Hug is warranted. The motion to compel deposition is GRANTED.

Requests for Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP, § 2025.450 subd. (g)(1).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

Plaintiff requests sanctions in the amount of \$2,500 in both her opposition to Defendants' motion for protective order and her motion to compel deposition. The Court finds that sanctions for the motion for protective order are not warranted as the substantive relief sought, depositions of Defendants' corporate witnesses, is duplicative. Accordingly, the request for sanctions in connection with the opposition to the motion for protective order is DENIED.

As to the request for sanctions in the motion to compel deposition, the amount requested is high. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 4 hours of attorney time to prepare motion, and for the Court appearance. The Court reduces the attorney fees sought to \$2,000.00. The Court reduces the hourly rate to \$500.00 per hour.

RULING:

Defendants Sage Glendale II LLC, Agemark Management LLC, and Angela Smith's Demurrer is OVERRULED. The Motion to Strike is DENIED.

Defendants are to file an Answer within 10 days of this order.

Defendant Agemark Management LLC's Motion for Protective Order is DENIED.

Plaintiff Emadia Fayad's Motion to Compel Deposition is GRANTED. Defendants are ordered to produce the deponent, Martin Hug, for deposition at a mutually agreeable time within 30 days of notice of this order.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$2,000 (4 hours @ \$500/hour) [7.0 hours requested] [Amount Requested \$2,500], which sum is to be awarded in favor of Plaintiff Emadia Fayad, and against Defendant Sage Glendale II, LLC, and its attorneys of record Burger, Meyer & D'Angelo, LLP jointly and severally, payable within 30 days. (CCP § 2025.450, subd. (g)(1); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by 2:00 pm today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.